

Form No.HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Revision No.25317/2025

Shaukat Butt Vs The State etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with the signature of the Judge and that of parties or counsel where necessary
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30.4.2025 Hafiz Naimat Ullah, Advocate for the Petitioner.
Rana Tasawar Ali Khan, Deputy Prosecutor General.

Tariq Saleem Sheikh, J. – The Petitioner was initially arrested in FIR No. 511/2023 dated 4.5.2023, registered at Police Station Saddar, Narowal, under sections 302, 324, 337-F(i) and 34 of the Pakistan Penal Code (PPC). On 11.8.2023, the Additional Sessions Judge, Narowal, granted him post-arrest bail in that case.

2. Subsequently, on 24.10.2023, a second FIR No. 1096/2023 was registered at the same police station on the complaint of Tahir Mehmood under sections 324, 148, and 149 PPC. The Petitioner was nominated as one of the accused and was re-arrested in connection with that matter. The Investigating Officer produced him before the Magistrate, who granted a three-day physical remand.

3. On 15.11.2023, the complainant in FIR No. 511/2023, Imtiaz Ahmad (Respondent No.2), filed an application under section 497(5) Cr.P.C. before the Sessions Court, Narowal, seeking cancellation of the Petitioner’s bail granted on 11.8.2023. The Additional Sessions Judge allowed the application through order dated 17.1.2024.

4. On 20.8.2024, the Petitioner filed Criminal Revision No.49517/2024 before this Court, challenging the cancellation order dated 17.1.2024. Notice was issued to the State and Respondent No.2, and the Court granted the Petitioner interim bail. The matter was adjourned on various dates but was dismissed on 17.4.2025 due to the Petitioner’s non-appearance.

5. The Petitioner has filed the present revision petition challenging the same order dated 17.1.2024 passed by the Additional

Sessions Judge, Narowal. However, the Office has raised a preliminary objection that a second revision petition, after the dismissal of the first, is not maintainable under the law.

Opinion of the Court

6. Chapter XXXII of the Code of Criminal Procedure 1898 confers revisional jurisdiction on the High Court and the Sessions Court to address questions of legality, procedural irregularity, or miscarriage of justice. These courts may call for and examine the record of any criminal proceedings, either suo motu or on the application of a party, to determine whether interference is necessary in the interest of justice. In **Nisar Ahmad v. The State and another** (1975 PCr.LJ 400), a Division Bench of this Court emphasized that revisional powers are distinct from appellate jurisdiction. It held that any person may bring an illegality or material irregularity in judicial proceedings to the notice of the revisional court, which can intervene to rectify it.

7. Admittedly, the Code of Criminal Procedure contains no express provision for dismissing a revision petition in default. In **Muhammad Ramzan v. Allah Ditta and others** (1982 SCMR 215), the Supreme Court of Pakistan noted that there is also no bar to such dismissal. It observed that there was “an old and well-known” judicial practice of dismissing petitions, including those under sections 476, 497, 426, and 526 Cr.P.C., when neither the party nor counsel appears on the date fixed. The Court further held that where the applicant, being fully aware of the hearing date, deliberately or without excuse absents himself, the court is justified in dismissing the matter rather than proceeding in their absence. To do otherwise may result in an incorrect decision, waste public time and resources, and encourage the filing of frivolous applications aimed merely at delay. The Supreme Court concluded that such dismissals, far from being improper, prevent abuse of the court’s process within the meaning of section 561-A Cr.P.C.¹

8. A survey of the precedents shows that some courts distinguished between cases in which the revision petitions were admitted to a regular hearing and those in which they were not. In **Munir**

¹ Also see: *Abdullah v. Din Muhammad Shah and others* (PLD 1976 Karachi 1184)

Ahmad v. The State (1991 MLD 1781) and **Muhammad Hanif v. The State** (1991 PCr.LJ 1353), the courts proceeded to decide the matters on merits despite the absence of the petitioners or their counsel. Similarly, in **Yar Mat Khan v. The State and another** (2004 PCr.LJ 468), the High Court set aside an order of the Additional Sessions Judge dismissing an admitted revision petition for non-prosecution and remanded the case for decision on merits. However, in **Maulvi Asad Ahmad alias Asad and others v. The State and another** (PLD 1990 Lahore 1), it was held that if an appeal under section 417 Cr.P.C. can be dismissed otherwise than on merits, there is no reason why a court cannot dismiss a revision petition in default of appearance.²

9. Albeit the Supreme Court endorsed the practice of dismissing unattended petitions to prevent abuse of process in *Muhammad Ramzan*, that principle must be applied with care where a revision petition has been admitted to a regular hearing. Admission indicates that the court has provisionally considered the matter and observed an apparent illegality or material irregularity that warrants further scrutiny. In such cases, dismissing the matter solely due to the petitioner's absence may defeat the very purpose for which it was admitted. Therefore, although the court retains the discretion to dismiss for non-prosecution, judicial propriety demands that such discretion be exercised cautiously where the petition has passed the threshold of admission.

10. Even where a revision petition is dismissed in default, the aggrieved party may seek its restoration under the inherent jurisdiction of the High Court. In *Muhammad Ramzan*, the Supreme Court held that the High Court is empowered under section 561-A Cr.P.C. to set aside such an order if sufficient cause for non-appearance is shown. The Court further clarified that restoration in such circumstances does not attract the prohibition under section 369 Cr.P.C., as a dismissal for non-prosecution does not constitute a judgment on merits.

² *Maulvi Asad Ahmad alias Asad and others v. The State and another* (PLD 1990 Lahore 1) was followed in *Abdul Rasheed v. Sharif and others* (1997 PCr.LJ 685).

11. In view of the foregoing discussion, a second revision petition against the same order is not maintainable where the first was dismissed for non-prosecution because such dismissal does not operate as a decision on merits. However, this does not leave the aggrieved party remediless. The appropriate course is to seek restoration of the earlier petition under section 561-A Cr.P.C. by demonstrating sufficient cause for non-appearance.

12. It is necessary to clarify the scope of the High Court's inherent jurisdiction under section 561-A Cr.P.C., which empowers it to prevent the abuse of the process of any court and to secure the ends of justice. These powers are not available to the Sessions Court. Therefore, if a Sessions Judge dismisses a revision petition on the ground of non-prosecution, the aggrieved party may approach the High Court under section 561-A Cr.P.C. for revival of the petition. It is important to note that section 439(4) Cr.P.C. bars the High Court from entertaining a revision against an order passed by a Sessions Judge under section 439-A. However, this restriction does not apply where the High Court exercises its inherent powers under section 561-A to rectify a procedural irregularity or to revive a matter dismissed without adjudication on merits.

13. It is emphasized that in every application under section 561-A Cr.P.C. seeking restoration of a revision petition which was dismissed for non-appearance, the applicant must clearly set out sufficient cause for the absence on the relevant date. Mere assertion is not enough; the reasons must be stated with particularity and supported by material on record, where possible.

14. Office objection is sustained. This petition is disposed of accordingly.

(Tariq Saleem Sheikh)
Judge

Naeem

Approved for reporting

Judge